

Court 9:00 12	24CV432080	Serenity vs. Palo Alto Mind Body	Defendant moves this Court to reconsider order denying defendant's motion to dismiss defendant without prejudice and to maintain proceedings. Defendant does not offer any new set of facts as required by CCP 1008. Defendant's motion is DENIED.
9:00 13	25CV462289	James Cuevas vs FCA	Motion withdrawn.
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Line 1,2

Defendant, General Motors LLC's ("GM") demurrer to the fifth cause of action in Plaintiffs' first amended complaint ("FAC") and motion to strike punitive damages came on for hearing before the Court on January 15, 2026. Pursuant to California Rule of Court 3.1308, the Court issued its tentative ruling on January 14, 2026.

I. Alleged Facts

On August 7, 2015, Plaintiffs entered a warranty contract with GM for a 2015 GMC Sierra 1500, vehicle identification number 3GTU2VEC1FG291754 ("Subject Vehicle"), which was manufactured and/or distributed by GM and sold by Capitol GMC in San Jose, California. The contract warranted the Subject Vehicle "bumper-to-bumper", including but not limited to powertrain, emission, etc. (FAC ¶ 6) Prior to Plaintiffs purchasing the Subject Vehicle, GM knew that vehicles equipped with the same 6-speed transmission, as installed in the Subject Vehicle, suffered from one or more defects that could cause hesitation or delayed acceleration, harsh or hard shifting, jerking, shuddering, surging, acceleration, deceleration, or symptoms requiring reprogramming of the transmission control module ("TCM") and/or powertrain control module ("PCM"). ("Transmission Defect") GM acquired this knowledge through various sources of information, including but not limited to pre-production testing, pre-production design failure mode and analysis data, production failure mode and analysis data, early consumer complaints made exclusively to GM and its network of dealers, aggregate warranty data compiled from GM's network of dealers, testing conducted by GM in response to consumer complaints, and repair order and parts data received by GM from its network of dealers. (FAC ¶¶ 59-60)

GM and its directors, officers, employees, affiliates, and/or agents concealed the Transmission Defects from public and Plaintiffs. Had Plaintiffs known the Subject Vehicle and its transmission were defective

at the time of sale, they would not have purchased it. (FAC ¶ 62)

Plaintiffs initiated this action on December 3, 2024, and amended their complaint on August 21, 2025, alleging causes of action for (1) Violation of Civil Code section 1793.2, subdivision (d); (2) Violation of Civil Code section 1793.2, subdivision (b); (3) Violation of Civil Code section 1793.2, subdivision (a)(3); (4) Breach of the Implied Warranty of Merchantability; and (5) Fraudulent Inducement – Concealment.

II. Legal Standards

"The party against whom complaint or cross-complaint has been filed may object, by demurrer or answer as provided in [Code of Civil Procedure] section 430.30, to the pleading on any one or more of the following grounds: (e) The pleading does not state sufficient facts to constitute cause of action, (f) The pleading is uncertain." (Code Civ. Proc., 430.10, subds. (e) (f).) A demurrer may be utilized by "[t]he party against whom complaint has been filed" to object to the legal sufficiency of the pleading as whole, or to any "cause of action" stated therein, on one or more of the grounds enumerated by statute. (Code Civ. Proc., §§ 430.10, 430.50, subd. (a).)

The court treats demurrer "as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law." (*Piccinini v. Cal. Emergency Management Agency* (2014) 226 Cal.App.4th 685, 688, citing *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) "A demurrer tests only the legal sufficiency of the pleading. It admits the truth of all material factual allegations in the complaint; the question of plaintiff's ability to prove these allegations, or the possible difficulty in making such proof does not concern the reviewing court." (*Committee on Children's Television, Inc. v. General Foods Corp.* (1983) 35 Cal.3d 197, 213-214.) In ruling on demurrers, courts may consider matters subject to judicial notice. (*Scott v. JPMorgan Chase Bank, N.A.* (2013) 214 Cal.App.4th 743, 751.) Evidentiary facts found in exhibits attached to complaint can be considered on demurrer. (*Frantz v. Blackwell* (1987) 189 Cal.App.3d 91, 94.)

"Liberality in permitting amendment is the rule, if fair opportunity to correct any defect has not been given." (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.) It is an abuse of discretion for the court to deny leave to amend where there is any reasonable possibility that plaintiff can state good cause of action. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349.) The burden is on the plaintiff to show in what manner plaintiff can amend the complaint, and how that amendment will change the

legal effect of the pleading. (*Id.*)

"Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof...." (Code Civ. Proc. § 435.) "The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading; (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." (Code Civ. Proc. § 436.) "The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice. (Code Civ. Proc. § 437, subd. (a).)

III. Analysis

A. Demurrer to the FAC's Fifth Cause of Action – Fraudulent Concealment

The elements of fraudulent concealment are: (1) the defendant concealed or suppressed a material fact; (2) the defendant was under a duty to disclose the fact to the plaintiff; (3) the defendant intentionally concealed or suppressed the fact with the intent to defraud the plaintiff; (4) the plaintiff was unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact; and (5) as a result of the concealment or suppression of the fact, the plaintiff sustained damage. (*Burch v. CertainTeed Corp.* (2019) 34 Cal.App.5th 341, 348.)

"A duty to disclose a material fact can arise if (1) it is imposed by statute; (2) the defendant is acting as the plaintiff's fiduciary or is in some other confidential relationship with the plaintiff that imposes a disclosure duty under the circumstances; (3) the material facts are known or accessible only to the defendant, and the defendant knows those facts are not known or reasonably discoverable by the plaintiff (*i.e.*, exclusive knowledge); (4) the defendant makes representations but fails to disclose other facts that materially qualify the facts disclosed or render the disclosure misleading (*i.e.* partial concealment); or (5) the defendant actively conceals discovery of material fact from the plaintiff (*i.e.*, active concealment). Circumstances (3), (4), and (5) presuppose a preexisting relationship between the parties, such as "between seller and buyer, ..., or parties entering into any kind of contractual agreement. All of these relationships are created by transactions between parties from which a duty to

disclose facts material to the transaction arises under certain circumstances. Such a transaction must necessarily arise from direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large.” (*Rattagan v. Uber Techs., Inc.* (2024) 17 Cal. 5th 1, 40, internal citations and quotes are omitted.)

GM contends Plaintiffs fail to allege a viable claim for fraudulent concealment because the claim (1) is barred by the applicable three-year statute of limitation, (2) fails to allege a transactional relationship that would give rise to a duty to disclose, and (3) fails to state facts with the requisite specificity. Citing *Antonov v. General Motors LLC* (C.D. Cal. Jan. 19, 2024) No. 8:23-cv-01593- FWS-MJR, 2024 WL 217825¹, GM emphasizes lack of any transactional relationship with Plaintiffs since it did not directly sell the Subject Vehicle to them, and dealerships are not agents of automobile manufacturers. As such, it did not have any duty of disclosure to Plaintiffs as a matter of law.

1. Statute of Limitation

Claims for fraudulent inducement based on concealment are subject to a three-year statute of limitations. (Code Civ. Proc., § 338(d).) A general demurrer based on the statute of limitations is only permissible when the grounds for the defense are disclosed on the face of the complaint or from matters judicially noticed. (*Vaca v. Wachovia Mortgage Corp.* (2011) 198 Cal.App.4th 737, 746; *Iverson, Yoakum, Papiano & Hatch v. Berwald* (1999) 76 Cal.App.4th 990, 995.) In other words, the dates alleged in the complaint must show the action is barred by the applicable statute of limitations and the running of the statute must appear clearly and affirmatively from the alleged dates. If not, the proper remedy is to ascertain the factual basis of the contention through discovery and, if necessary, file a motion for summary judgment. (See, *Roman v. County of Los Angeles* (2000) 85 Cal.App.4th 316, 324-325.)

GM, referring to paragraph 6 of the FAC, incorrectly contends Plaintiffs claim accrued on November 3, 2018, when the Subject Vehicle was purchased and the express warranty went into effect. Therefore the latest filing date for the complaint was November 3, 2021. (Demurrer 8:13-17)

¹ A decision of a federal district court has no precedential value in this court; at best, it is persuasive authority only. (*Castaneda v. Department of Corrections & Rehabilitation*, (2013) 212 Cal. App. 4th 1051, 1075)

However, paragraph 6 of the FAC alleges the Subject Vehicle was purchased on August 7, 2015, and based on GM's calculation method the deadline arguably would have been August 7, 2018.

Nonetheless, a fraud claim "is not deemed to have accrued until the discovery, by the aggrieved party, of the facts constituting the fraud or mistake." (Code Civ. Proc., § 338, subd.(d).) Plaintiffs allege they discovered GM's wrongful conduct shortly before the filing of their original complaint, as the Subject Vehicle continued to exhibit symptoms of engine defects following GM's unsuccessful attempts to repair them. (FAC ¶ 35) Nothing in the FAC specifies or shows when Plaintiffs discovered the alleged fraud. A demurrer on the ground of the bar of the statute of limitations will not lie where the action may be, but is not necessarily barred. (*Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCort* (2001) 91 Cal.App.4th 875, 881.) Consequently, GM's demurrer is OVERRULED on this ground.

2. Transactional Relationship

"A relationship between the parties is present if there is some sort of transaction between the parties." (*Hoffman v. 162 N. Wolfe LLC*, (2014) 228 Cal. App. 4th 1178, 1187, internal citation and quotes omitted) Plaintiffs allege they entered into an express warranty agreement with GM on August 7, 2015. The Court is obligated to construe all inferences in the FAC in the light most favorable to Plaintiffs. As such, Plaintiffs have sufficiently alleged a transactional relationship with GM that gives rise to a duty to disclose. Plaintiffs have also alleged sufficient facts showing GM's exclusive knowledge of the Transmission Defect, which were not reasonably discoverable by Plaintiffs. Consequently, GM's argument for lack of duty to disclose fails on either basis and its demurrer is OVERRULED on this ground.

3. Specificity

The requirement of specificity is relaxed when the allegations indicate that "the defendant must necessarily possess full information concerning the facts of the controversy" or "when the facts lie more in the knowledge of the opposite party[.]" (*Tarmann v. State Farm Mut. Auto. Ins. Co.*, (1991) 2 Cal. App. 4th 153, 158, internal citation omitted)

Still, Plaintiffs' claim for concealment is insufficiently pled. Plaintiffs fail to allege facts showing (1) specific affirmative or intentional acts GM took in hiding or concealing the Transmission Defects, (2) where the omitted information should or could have been revealed, and (3) GM's intent to defraud

Plaintiffs. Even under the more relaxed pleading standard that applies to omission-based fraud claims (*Alfaro v. Community Housing Improvement System & Planning Association, Inc.* (2009) 171 Cal.App.4th 1356, 1384.), conclusory allegations that GM concealed transmission safety defects (FAC ¶15) are insufficient to defeat demurrer.

Accordingly, GM's demurrer to Plaintiff's fifth cause of action is SUSTAINED WITH LEAVE TO AMEND.

B. Motion to Strike Punitive Damages

GM contends punitive damages are not recoverable under Plaintiffs' first four causes of action for violation of the Song-Beverly Consumer Warranty Act (Civ. Code § 1790, et seq. ("The Act")) GM adds that Plaintiffs' prayer for punitive damages in relation to their claim for fraudulent concealment must also be stricken because the claim is not only time-barred, but also fails to state facts showing it acted with malice, oppression, and fraud. GM incorporates its demurrer arguments in support.

As analyzed in the previous section, nothing in the FAC specifies or shows when Plaintiffs discovered the alleged fraud. As such, neither a demurrer nor a motion to strike portions of the complaint lie when the grounds for statutory bar are not disclosed on the face of the FAC. Therefore, GM's motion on this ground is DENIED.

Moreover, damages under the Song Beverly Act include a refund of the purchase price or replacement of the vehicle and, under certain circumstances, a civil penalty not to exceed two times Plaintiff's actual damages. (Civ. Code, sec. 1794.) Civil penalties are awarded if the trier of fact finds Defendant willfully violated its obligations. (Civ. Code, sec. 1794(c).) The California Courts of Appeal have opined that punitive damages are not available under the Song-Beverly Act because they are akin to civil penalties that are otherwise available under the Song-Beverly Act. (*Kwan v. Mercedes-Benz of North America, Inc.* (1994) 23 Cal.App.4th 174, 184-185; *Troensegaard v. Silvercrest Industries, Inc.* (1985) 175 Cal.App.3d 218, 228.)

Plaintiffs assert punitive damages can be pled under the Song Beverly Act, citing *Brilliant v. Tiffin Motor Homes, Inc.* (N.D. Cal. July 7, 2010) 2010 WL 2721531, *Clark v. LG Elecs. U.S.A., Inc.* (S.D. Cal. Oct. 29, 2013) 2013 WL 5816410, *Romo v. FFG Ins. Co.* (C.D. Cal. 2005) 397 F.Supp. 2d 1237, and *Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253. Although the federal cases may have determined otherwise, this Court is unaware of any California case law that allows punitive damages under the

Song Beverly Act.

As for *Clauson*, the Court found the plaintiff could plead punitive damages under the common law tort claim of invasion of privacy and simultaneously plead civil penalties under the statutory claim for unlawful wiretapping pursuant to Penal Code section 637.2, subdivision (a). The Court of Appeal did not find punitive damages could be pled under the statutory claim for unlawful wiretapping.

Therefore, the Court is unpersuaded that punitive damages can be brought simultaneously with Plaintiffs' causes of action under the Song Beverly Act. In the event Plaintiffs' cause of action for fraudulent concealment is successfully pled in the future, they may bring a claim for punitive damages under that cause of action, but not under the Song Beverly Act.

Accordingly, GM's motion to strike punitive damages is GRANTED WITHOUT LEAVE TO AMEND as to the first through the fourth causes of action, and WITH LEAVE TO AMEND as to fifth cause of action.

LINE 3

MOSHE DAN ANCONINA, an individual,

Plaintiff,

v.

DIANA ROMANOV, formerly known as DIANA
ROMANOVSKA, individually and ROMANOV LAW,

Defendants.

Case No. 25CV470386

**ORDER GRANTING PLAINTIFF'S MOTION TO
STRIKE DEFENDANTS' ANSWER WITH LEAVE
TO AMEND & DENYING REQUEST FOR SANCTIONS**

Plaintiff's motion to strike Defendants' answer and affirmative defenses came on for hearing before the Court on February 19, 2026. Pursuant to California Rule of Court 3.1308, the Court issues its tentative ruling on February 18, 2026.

I. Alleged Facts

From August 2022 through July 2024, Defendant Diana Romanov represented Plaintiff in a family law matter before the Santa Clara County Superior Court. During this time, Plaintiff paid Ms.